

4-951. Petition to expunge arrest records and public records; identity theft.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

_____ JUDICIAL DISTRICT COURT

In re _____,

No.

Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-3 [~~NMSA 1978~~]
(Identity Theft)**

Petitioner, [] unrepresented by counsel/[] represented by counsel (*select one*), under NMSA 1978, Section 29-3A-3 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and public records related to the cases/charges below.

1. Information about Petitioner:

Date of Birth: 1991-04-17

Current Mailing Address: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

City: _____ State: XX Zip Code: 01234-9999

Home Phone #: _____ Work Phone #: _____ Cell #: _____

Other names or aliases by which Petitioner has been known (*include prior names, nicknames, or aliases, especially if your arrest records may reflect a different name*):

2. [] Petitioner has no pending expungement cases in the _____ Judicial District.

[] Petitioner has the following pending expungement cases in the _____ Judicial District Court (*provide expungement case numbers for any expungement cases that may be currently pending before the _____ Judicial District Court*):

3. [] Petitioner has never applied for expungement and been denied.

[] Petitioner has applied for expungement and been denied in the following expungement cases (*provide the expungement case numbers*): _____

4. As the result of identity theft, Petitioner has been improperly named in the following criminal case or cases:
Case name: _____
Case number: _____
Date of filing: _____

Please attach copies of any records in your possession associated with this case.

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s): _____

Supreme Court case number(s): _____

~~[5.]~~ 6. Petitioner asks this Court for an Order to Expunge Arrest and Criminal Records for information in the custody of the following agencies:

- [] District Court in the _____ Judicial District;
[] _____ County Sheriff's Department;
[] District Attorney for the _____ Judicial District;
[] New Mexico Department of Public Safety;
[] Law Enforcement Agency (*name of agency*) _____;
[] Metropolitan/Magistrate/Municipal Court in _____ (*location*);
[] New Mexico State Police Investigations Bureau;
[] Other _____.

~~[6.]~~ 7. The charges sought to be expunged were originally disposed of or originated in (*select one*)

- [] District Court in the _____ Judicial District
[] Metropolitan Court in _____ (*location*)
[] Magistrate Court in _____ (*location*)
[] Municipal Court in _____ (*location*)

~~[7.]~~ 8. [] Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Printed name of Petitioner _____

Date _____

**CIVIL FORMS
4-951**

**Supreme Court Approved
October 31, 2025**

1	Signature of Petitioner	
2	_____	
3	Mailing Address	
4	_____	
5	Telephone Number	Email
6		
7	_____	
8	Attorney Name (<i>if applicable</i>)	Date
9	_____	
10	Attorney Signature	
11	_____	
12	Mailing Address	
13	_____	
14	Telephone Number	Email
15		
16	[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending	
17	or filed on or after January 28, 2022; <u>provisionally adopted form approved as amended by</u>	
18	<u>Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after</u>	
19	<u>December 31, 2025.</u>]	